

25STCV07972 25STCV07972

County: los-angeles

Division: Civil Law and Motion

Department: 408

Hearing date: 2026-08-06

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Case Number: 25STCV07972 Hearing Date: August 6, 2026 Dept: 408

Plaintiff Rhonda

Colson's Motion to Compel Sanctions Pursuant to Civil Code section 871.26 is
DENIED.

I.

BACKGROUND

On March 19, 2025, Plaintiff Rhonda Colson ("Plaintiff") filed a
complaint against Defendant Nissan North America Inc. ("Defendant") alleging
causes of action for:

1.

Violation of Subdivision (d) of Civil Code
Section 1793.2;

2.

Violation of Subdivision (b) of Civil Code
Section 1793.2;

3.

Violation of Subdivision (a)(3) of Civil Code
Section 1793.2;

4.

Breach of Implied Warranty of Merchantability;
and

5.

Fraudulent Inducement – Concealment.

On June 26, 2025, Defendant filed an answer to Plaintiff's complaint.

On April 8, 2026, Plaintiff filed this Motion to Compel Sanctions pursuant to Civil Code section 871.26. On July 24, 2026, Defendant filed an opposition. As of August 3, 2026, no reply has been filed.

II.

LEGAL STANDARD

In civil actions seeking restitution or the replacement of a motor vehicle pursuant to Code of Civil Procedure section 871.20, within 60 days of the filing of an answer or other responsive pleading, the "parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code Civ. Proc., § 871.26, subd. (b).)

Defendants must provide the documents outlined in subdivision (h), as follows: "The defendant or manufacturer shall provide the following documents to all other parties pursuant to the timelines prescribed in subdivision (b):

(1) Copy of or access to a version of the owner's manual for a motor vehicle of the same make, model, and year.

(2) Any warranties issued in conjunction with the sale of the motor vehicle.

(3) Sample brochures published for the motor vehicle.

(4) The motor vehicle's original invoice, if any, to the selling dealer.

(5) Sales or lease agreement, if the manufacturer is in possession.

(6) Motor vehicle information reports, including build

documentation, component information, and delivery details.

(7) Entire warranty transaction history for the motor vehicle.

(8) Listing of required field actions applicable to the motor vehicle.

(9) Published technical service bulletins for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(10) Published information service bulletins for the same make, model, and year reasonably related to the nonconformities pertaining to the motor vehicle.

(11) Records relating to communications between the manufacturer or dealership and the owner or lessee of the motor vehicle, including those related to repair orders or claims involving the motor vehicle.

(12) Warranty policies and procedure manuals.

(13) Service manuals reasonably related to the nonconformities pertaining to the motor vehicle.

(14) If a pre-suit restitution or replacement request is made, all call recordings of pre-suit communications with the consumer available at the time of service of the complaint.

(15) If a pre-suit restitution or replacement request is made,
the

manufacturer's written statement of policies and procedures used to evaluate customer requests for restitution or replacement pursuant to "Lemon Law" claims.

(16) If a pre-suit restitution or replacement request is made,
any

nonprivileged, prelitigation evaluation.

(17) Any warranty extensions or modifications issued by the manufacturer on the motor vehicle."

(Code Civ. Proc., § 871.26, subd. (h).)

Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500) sanction against the plaintiff's attorney or two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney respectively, paid within 15 business days for failure to comply with the document production requirements as prescribed in subdivision (b).

(Code Civ. Proc., § 871.26, subd.
(j)(1).)

III.

DISCUSSION

Plaintiff

moves to compel Defendant's initial disclosures under Code of Civil Procedure section 871.26(h) and requests sanctions under Section 871.26(j)(1).

A.

Request for Judicial Notice

Defendant's request

for judicial notice is granted. "A court may properly take judicial notice of its own records. (Evid. Code, § 452, subd. (e).)" (Garcia v. Sterling (1985) 176 Cal.App.3d 17, 21.) However, the court does not grant judicial notice of factual findings in the above documents. Factual findings in prior judicial orders, opinions, or decisions are not a proper subject of judicial notice. (Kilroy v. State of Calif. (2004) 119 Cal.App.4th 140, 148.) But the finding itself may be a proper subject of judicial notice if it has a res judicata or collateral estoppel effect in a subsequent action. (Ibid.)

B. Code of Civil

Procedure section 871.26(h)

Plaintiff

contends that Defendant filed an answer on June 26, 2025, and failed to provide its initial disclosures by the 60-day statutory deadline of August 25, 2025.

(Motion, at p. 5.) Plaintiff provides that, during meet and confer efforts, given the volume of cases, Defendant proposed to produce initial disclosures for 50 cases per month. (Motion, at pp. 6-7; Hill Decl., ¶ 3, Exh. 1.)

Plaintiff argues that Defendant has also failed to comply with this agreement.

(Ibid.) Plaintiff

argues that Defendant must comply with Section 871.26 by producing all documents required under subdivisions (h)(1) through (h)(17) within twenty days of the court's order. (Motion, at pp. 9-15.)

In

opposition, Defendant contends that the parties agreed to temporarily suspend their mutual AB 1755 obligations while they pursued informal resolution of this matter

(Opp., at p. 2; Sweeny Decl., ¶ 6.) Defendant further contends that, on April 29, 2026, Defendant produced the required initial disclosures to Plaintiff.

(Opp., at pp. 2-3; Sweeny Decl., ¶¶ 10-11, Exh. A.)

The

court finds that Plaintiff's motion to compel initial disclosures is moot pursuant to Defendant's representation that the required documents were served.

With respect to Plaintiff's request for sanctions, the court find that sanctions are unwarranted as Defendant offered prompt initial disclosures following Plaintiff's filing of this motion and believed in good faith that no disclosures were due prior based on the parties' agreement and efforts to informally resolve the action.

Accordingly,
the motion is denied.

IV.

CONCLUSION

Plaintiff Rhonda Colson's Motion to Compel Sanctions Pursuant to Civil Code section 871.26 is DENIED.